

24PSCV02605 24PSCV02605

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Case Number: 24PSCV02605 Hearing Date: August 31, 2026 Dept: H

Alcantara, et al v. Cullens, et
al., Case No. 24PSCV02605

ORDER ON MOTION
TO CONTINUE TRIAL

Defendant

Scott Allen Cullens' Motion for Order to Continue Trial and All Pre-Trial
Related Deadlines, Including Discovery Cut-Off is GRANTED.

Background

Plaintiffs

Nepthali Alcantara and Hortencia Alcantaradelopez (together, "Plaintiffs")
contend that they sustained injuries and damages in a September 26, 2022 motor
vehicle collision on the Interstate 210- West freeway.

On

August 13, 2024, Plaintiffs filed a complaint, asserting causes of action
against Scott Allan Cullens ("Cullens"), Jebadiah Scott Cooper ("Cooper"), and
Does 1-100 for: (1) Negligence, (2) Negligence Per Se, (3) Negligent Infliction
of Emotional Distress, and (4) Negligent Hiring, Retention, Training and
Supervision.

On

January 22, 2025, the Court sustained Cullens' demurrer to the third cause of
action, without leave given to amend.

On

November 12, 2025, Cullens filed a “Notice of Stay of Proceedings,” advising therein of his Chapter 7 bankruptcy filing. On November 13, 2025, the Court ordered the case stayed. On April 30, 2026, the Court ordered the stay lifted.

The

Final Status Conference is set for November 20, 2026. Trial is set for December 8, 2026.

Legal Standard

“A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application. . . , with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the continuance is discovered.” (Cal. Rules of Court, rule 3.1332(b).)

“Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: . . . (6) A party’s excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts. . . .” (Cal. Rules of Court, rule 3.1332(c).)

“In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

- (1) The proximity of the trial date;
- (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;
- (3) The length of the continuance requested;
- (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5) The prejudice that parties or witnesses will suffer as a result of the continuance; . . .

(7) The court's calendar and the impact of granting a continuance on other pending trials; . . .

(10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact or circumstance relevant to the fair determination of the motion or application." (Cal. Rules of Court, rule 3.1332(d).)

Discussion

Cullens moves the Court for an order, per Code of Civil Procedure section 128 and California Rules of Court, rule 3.1332, to continue the trial and all pre-trial related deadlines, including discovery cutoff, by approximately four months.

Joinder

On July 29, 2026, Cooper filed a timely "Notice of Joinder." Cooper's joinder is granted.

Merits

Cullens seeks a four-month continuance of the trial date, and all pre-trial related dates (including discovery cut-off), on the basis that, despite exercising due diligence, the parties have not completed discovery (and in fact, they have completed only one deposition). Depositions of the named parties, witnesses, and experts still remain outstanding. Cullen further argues that, because the discovery cutoff is approaching on November 9, 2026, it will not be feasible to complete discovery in time.

According to the joinder, Cooper's counsel is currently unable to locate Cooper. Cullens' counsel also notes that the case was stayed for a period of time because of Cullens' bankruptcy filing. Plaintiff does not oppose trial continuance as it relates to Cooper but opposes continuance as it relates to Cullens. Plaintiff argues that this matter

involves two unrelated collisions, yet Plaintiff chose to sue these defendants together. Plaintiff does not raise any argument regarding prejudice.

The Court has reviewed the accompanying declaration from attorney Brian Leach and agrees that a continuance of the trial date, and all pre-trial related dates (including discovery cut-off) is warranted; as such, the Court will grant the motion and vacate the current November 20, 2026 Final Status Conference and December 8, 2026 trial dates. The Court will hear from the parties as to appropriate continued dates at the time of the hearing.